

ASCII MASTER FLOW – PANEL 1/12: From Company sovereignty to constituent sovereignty, 1765-1950

1765 DIWANI: revenue power outruns public accountability

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1773 PARLIAMENTARY REGULATION

Regulating Act -> Governor-General of Bengal -> Calcutta Supreme Court

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1781 JURISDICTION REPAIR -> 1784 DUAL CONTROL

Settlement Act Company administration + Board supervision

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1813-1853 CHARTER TRANSFORMATION

monopoly opened -> Company de-commercialised -> legislation centralised

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1858 CROWN RULE -> 1861-1892 ASSOCIATION WITHOUT RESPONSIBILITY

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1909 COMMUNAL REPRESENTATION -> 1919 LIMITED RESPONSIBILITY

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1935 FEDERAL BLUEPRINT + PROVINCIAL AUTONOMY

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1947 SOVEREIGN CONSTITUENT POWER -> 1950 DEMOCRATIC CONSTITUTIONALISM

MUST REMEMBER: Colonial constitutional development must run in exact sequence from Company regulation through Crown rule, representation, responsible government, the 1935 federal-administrative blueprint and the sovereign 1947-1950 transition.

ASCII MASTER FLOW – PANEL 2/12: Who controlled whom: the imperial power hierarchy

BRITISH PARLIAMENT

- +-- 1773: begins statutory control over territorial Company rule
- +-- 1784: creates Board of Control for political supervision
 - | +-- BOARD OF CONTROL: civil, military and revenue direction
 - | +-- COURT OF DIRECTORS: Company administration and patronage
- +-- 1858: abolishes Company government
 - +-- SECRETARY OF STATE FOR INDIA: Cabinet responsibility
 - | +-- COUNCIL OF INDIA: advisory assistance
 - +-- GOVERNOR-GENERAL = VICEROY: Crown representative in India
 - +-- provincial governments

POWER SHIFT

Company charter -> parliamentary supervision -> Crown executive responsibility

LIMIT: accountability moved to Britain; responsible government in India did not follow.

ASCII MASTER FLOW – PANEL 3/12: 1773-1853: regulation, monopoly and centralisation compared

ACT	CONTROL / ECONOMY	INSTITUTIONAL RESULT
1773	Parliament regulates	GG of Bengal; Calcutta Supreme Court
1781	jurisdiction clarified	executive-revenue sphere protected
1784	political control separated	Board of Control; dual control
1813	India trade monopoly ends	sovereignty asserted; education grant
1833	all Company trade ends	GG of India; legislative centralisation
	Company becomes administrative	first Law Commission; no open competition yet
1853	charter not renewed for term	legislative-executive functions differentiated
	patronage principle weakened	competition route prepared

EXAM LINE: 1833 centralised the legislative state; 1853 specialised its machinery.

ASCII MASTER FLOW – PANEL 4/12: Representation without responsibility, 1861-1919

1861: NOMINATION

- +-- nominated Indian non-officials; portfolio system recognised
- +-- legislative decentralisation revived; no executive responsibility

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1892: SCRUTINY

- +-- budget discussion and questions
- +-- indirect-election element; official majorities retained

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1909: REPRESENTATION SEGMENTED

- +-- separate electorates for Muslims
- +-- larger councils; Indian on Viceroy's Executive Council
- +-- executive still not responsible to legislature

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1919: RESPONSIBILITY DIVIDED

- +-- provincial dyarchy: reserved versus transferred subjects
- +-- central bicameralism; direct elections and limited franchise
- +-- ministers lacked decisive coercive and fiscal levers

ASCII MASTER FLOW – PANEL 5/12: The 1935 constitutional machine: promise and safeguards

GOVERNMENT OF INDIA ACT 1935

- +-- ALL-INDIA FEDERATION: provinces + princely states
 - | +-- never commenced because required princely accession failed
- +-- LEGISLATIVE DISTRIBUTION
 - | +-- Federal List 59 | Provincial List 54 | Concurrent List 36
 - | +-- residuary allocation vested in Governor-General
- +-- PROVINCES
 - | +-- dyarchy abolished -> provincial autonomy
 - | +-- ministers responsible to provincial legislatures
- +-- CENTRE: proposed dyarchy; not brought into operation
- +-- INSTITUTIONS: Federal Court 1937 | PSCs | bicameral provinces
- +-- SAFEGUARDS: discretion, special responsibilities and reserved powers

VERDICT: autonomy was enlarged inside an imperial veto structure.

ASCII MASTER FLOW – PANEL 6/12: 1935 inheritance: retained, transformed, rejected

1935 DEVICE

Three legislative lists	retained; redistributed under Seventh Schedule
Federal Court	transformed into Supreme Court with wider review
Provincial autonomy	retained as elected State government
Public Service Comms.	constitutionalised for Union and States
Emergency machinery	retained but subjected to constitutional procedure
Governor's office	retained; democratic responsibility replaces imperial command
All-India Services	retained as an integrating administrative instrument

1950 TREATMENT

REJECTED OR NORMATIVELY BROKEN

imperial sovereignty -> popular sovereignty

communal electorates -> common electoral citizenship

limited franchise -> universal adult suffrage

ruler safeguards -> enforceable rights and judicial review

CLOSE DISTINCTION: Governor-General of Bengal (1773) is not Governor-General of India (1833);

1909 separate electorates, 1919 provincial dyarchy and 1935 provincial autonomy are distinct; the 1935 federation and central dyarchy never operated.

ASCII MASTER FLOW – PANEL 7/12: 1947 bridge: dominion legality to republican authority

INDIAN INDEPENDENCE ACT 1947

- +-- British rule ends; India and Pakistan become Dominions
- +-- British parliamentary authority over the new Dominions ends
- +-- princely-state suzerainty lapses; accession is not automatic absorption
- +-- Constituent Assembly becomes sovereign constitution-maker
- +-- Assembly also acts as Dominion legislature

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TRANSITIONAL GOVERNMENT

existing law and administration continue unless altered

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26 NOV 1949: Constitution adopted

24 JAN 1950: members sign

26 JAN 1950: Constitution commences; republic replaces dominion status

BRIDGE: legal continuity prevented a vacuum; constituent power changed authority's source.

ASCII MASTER FLOW – PANEL 8/12: Colonial reform: official motive versus Indian pressure

OFFICIAL PROBLEM

Company abuse / fiscal crisis
administrative overload
nationalist representation
mass political pressure
communal bargaining

IMPERIAL RESPONSE

parliamentary regulation, not self-government
centralisation, codification, specialised services
councils, limited elections, controlled devolution
graded responsibility with vetoes and safeguards
separate electorates and group arrangements

INDIAN COUNTER-PRESSURE

associations -> Congress demands -> Home Rule -> mass movements -> negotiation

SYNTHESIS

British policy designed controlled adaptation to preserve authority.
Indian politics converted concessions into platforms for further claims.
Reform was neither a unilateral gift nor a linear march to democracy.

ASCII MASTER FLOW – PANEL 9/12: Historical-background close-option control board

CLAIM TO TEST

1773 created Governor-General of India
1784 transferred India to Crown rule
1813 ended every Company monopoly
1833 introduced open civil-service exam
1861 introduced elected representation
1892 made executive legislature-dependent
1909 began responsible government
1919 put dyarchy at Centre
1935 federation operated
1935 created RBI directly
1947 automatically integrated princes

EXACT CONTROL

No: Governor-General of Bengal
No: dual control; Crown rule begins in 1858
No: tea and China trade exceptions remained
No: principle opened; competition came later
No: nominated Indian non-officials
No: scrutiny without responsibility
No: representation widened, executive insulated
No: provincial dyarchy
No: federal part never commenced
RBI Act 1934; operations began in 1935
No: suzerainty lapsed; integration followed

ASCII MASTER FLOW – PANEL 10/12: Exact 10/15-mark architecture: evolution into the 1950 Constitution

10 MARKS / 150 WORDS

1. Thesis: colonial statutes built machinery; 1950 changed its sovereign basis.
2. Three phases: 1773-1858 control; 1861-1919 representation; 1935 blueprint.
3. Evidence: one exact Act-feature pair from each phase.
4. Pivot: 1947 transferred constituent authority and preserved legal continuity.
5. Verdict: structural continuity plus democratic rupture.

15 MARKS / 250 WORDS

1. Open with Diwani power-accountability mismatch.
2. Trace control: 1773 -> 1784 -> 1858.
3. Trace participation: 1861 -> 1892 -> 1909 -> 1919.
4. Explain 1935 lists, autonomy, institutions and safeguards.
5. Compare retained devices with rejected imperial principles.
6. Add Indian pressure versus British controlled adaptation.
7. Conclude: inheritance supplied instruments, not constitutional legitimacy.

ASCII MASTER FLOW – PANEL 11/12: Jurisdiction, service and finance: the less-visible institutional spine

JUDICIARY: 1774 Supreme Court -> 1861 High Courts -> 1937 Federal Court -> 1950 Supreme Court

SERVICES: Company patronage -> 1853 competition principle -> 1919 PSC provision -> 1926 PSC

FINANCE: revenue control -> legislative budget scrutiny -> RBI Act 1934 / operations 1935

RULE: institutional ancestry does not imply unchanged constitutional purpose.

ASCII MASTER FLOW – PANEL 12/12: PYQ, ownership and source hierarchy control

DIRECT PYQ: 2024 Prelims Q62 -> 1935 federation provided, not commenced

RESERVED CONTROL: defence and external affairs -> Governor-General

BOUNDARY: Topic 02 owns Assembly detail; Modern History owns movements/Partition

SOURCE ORDER: statute/text -> official record -> judgment -> standard textbook

FINAL LINE: colonial machinery survived only after democratic transformation.

LEGAL/SOURCE LIMIT: Colonial statutes supplied machinery, not popular legitimacy: identify what 1950 retained, transformed and rejected, and do not invent a post-1947 live status for repealed enactments.